

No. 20-12897

**THE UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT**

DEEPGULF, INC. AND TOKE OIL AND GAS, S.A.

Plaintiff/Appellant,

v.

MARC MOSZKOWSKI,

Defendant /Appellee

On Appeal from the United States District Court for the
Northern District of Florida, Pensacola Division
Case No. 3:18-cv-01466-TKW-MJF

REPLY BRIEF OF APPELLANT

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Certificate of Interested Persons and Corporate Disclosure Statement

(Pursuant to Fed.R.App.P. 26.1 & 28 & 11th Cir. R. 26.1-1 through 1-3 & 28-1)

1. **Ball, Jr., Braden K., 40 Palafox Place, Suite 300, Pensacola, FL 32502, Attorney for Appellants.**
2. **Boller, Mary Allie E., 150 Government Street, Suite 1001, Mobile, AL 36602, Former Attorney for Appellee.**
3. **Boller, Thomas R., 150 Government Street, Suite 1001, Mobile, AL 36602, Former Attorney for Appellee.**
4. **DeepGulf, Inc., 431 East Zaragoza Street, Unit B, Pensacola, FL 32502, Appellant. DeepGulf, Inc. does not have any subsidiaries, conglomerates, affiliates, parent corporations or publicly held corporations that own 10% or more of its stock.**
5. **Frank, Michael, 1 North Palafox, Pensacola, FL 32502, Magistrate Judge, U.S. District Court for the Northern District of Florida.**
6. **Litvak Beasley Wilson & Ball, LLP, 40 Palafox Place, Suite 300, Pensacola, FL 32502, Law Firm for Appellant's Counsel.**
7. **Moszkowski, Marc, Chalet De Bulvedere, Le Croy 73350, Champagny-EN, Vanoise, FF, Appellee.**
8. **Thomas R. Boller, P.C., 150 Government Street, Suite 1001, Mobile, AL 36602, Former Law Firm for Appellee's Counsel.**
9. **Toke Oil and Gas, S.A., 431 East Zaragoza Street, Unit B, Pensacola, FL 32502, Appellant.**
10. **Wetherell, T. Kent, District Court Judge, 1 North Palafox, Pensacola, FL 32502, U.S. District Court for the Northern District of Florida.**

Guide to Abbreviations

The Appellant, DeepGulf, Inc. shall be referred to as “DeepGulf” or “Appellant.” The Appellant, Toke Oil and Gas, S.A. shall be referred to as “Toke.” The Appellee, Marc Moszkowski, shall be referred to as “Moszkowski” or “Appellee.”

References to the record, including pleadings, transcripts, and exhibits, shall be referred to by the district court docket number, followed by the applicable document page number or sometimes in cases where a pleading has discrete numbered paragraphs by the District Court Docket Number, followed by the applicable paragraph number. Example [Doc.#, P.#] or [Doc.#, ¶#]

References to Appellee’s Brief shall be reflected by the designation [Appellee’s Brief, P.#].

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LAW AND ARGUMENT

I. Appellee wholly failed to address the legal arguments presented in Appellant's Initial Brief.

Appellee's Answer Brief is a rambling self-serving diatribe by Appellee interjecting facts that are not supported by the record on appeal. Appellant's Initial Brief succinctly cited to three issues for this Court to decide on appeal. The issues are as follows:

1. Whether the District Court erred in granting summary judgment in favor of Appellee as to Count II of Appellants' Complaint, regarding the Appellants' right to possession of certain "Company Property"?
2. Whether the District Court erred in granting summary judgment in favor of Appellee as to Counts III through IV of Appellants' Complaint, in that the District Court did not properly consider the defense of fraudulent concealment and its applicability to the Appellee's claim that the Statute of Limitations barred those Counts?
3. Whether the District Court erred in denying Appellants' Motion to Amend?

Appellants briefed these issues with legal authorities for this Court to consider. As stated in Appellants' initial brief, these issues are all to be reviewed *de novo* by this Court on appeal. Instead of countering the well-established case

precedent cited by Appellants¹, Appellee writes a 58 page brief on several off-topic matters including, the intricacies of the formation of Toke Oil & Gas, S.A. in East Timor (Appellee's Brief, P. 14-19); the negotiation of contracts in East Timor (Appellee's Brief, P. 22-23); Appellee's issues in not being able to obtain a Visa (Appellee's Brief, P. 24-26); and an alleged dispute between Appellee and Rustin Howard (Appellee's Brief, P. 42-46).

In the present case, the weight of the brief (i.e. the number of pages in Appellee's Answer Brief) does not equate to the weight of the law. Appellee's 58 page brief contains no legal authorities or even legal responses to Appellants' cogent points on appeal, other than self-serving conclusory statements, which cannot be used to defeat Appellants' legal authority it cited to.

II. Appellee failed to make sufficient pinpoint citing to the District Court record and failed to comply with Rule 28(b), Federal Rules of Civil Procedure.

The Appellee makes 10 citations to the record throughout his 58-page Answer Brief. These citations are in many of the sections of the Brief that are completely outside the scope of being responsive to Appellant's Initial Brief. In addition, Appellee does not cite to one single legal authority that would counter Appellants' logical and sound legal arguments made in its Initial Brief. It is black letter law that

¹ Appellee admits that it was "very difficult for Appellee...to find relevant and plausible precedents in the legal literature." (Appellee's Brief, P. 4)

when a portion of a record is not cited to in a brief, then that argument is deemed to be waived. U.S. v. Seguro, 484 Fed.Appx. 349 (11th Cir. 2012). As such, to the extent that any of the statements made in Appellee's Answer Brief could have been used to respond to Appellants' Initial Brief said positions are waived because of Appellee's failure to cite to the record. Id.

In addition, Appellee, failed to comply with Rule 28(b), Federal Rules of Appellate Procedure. The Appellee's brief does not contain a Statement of the Issues, a Statement of the Case, or a Statement of the Standard of Review. Of course, these are only required by Rule should the Appellee be dissatisfied with the Appellant's statement. Id. This Court has advised litigants that "Rule 28 requires appellants to submit a statement of relevant facts with corresponding record cites and requires appellees to do the same if dissatisfied with the appellants' version." Johnson v. City of Fort Lauderdale, Florida, 126 F.3d 1372 (11th Cir. 1997). "These requirements are not to be taken lightly, especially since we [this Court] are not obligated to cull the record ourselves in search of facts not included in the statement of fact." Id. Therefore, since Appellee's Answer Brief did not contain a Statement of the Issues, a Statement of the Case, or a Statement of the Standard of Review, Rule 28 deems that Appellee is satisfied with the statements contained within Appellants' Initial Brief.

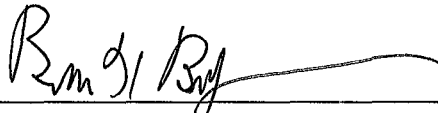
III. Appellee improperly raises issues outside of the scope of Appellants' Initial Brief.

In Appellee's brief, Appellee raises many issues which are outside the scope of the issues raised by Appellants. At times, the style of the written brief makes it difficult to determine the exact point to which Appellee is attempting to respond. Arguments outside of the scope of an Appellant's Brief and not raised by Appellee on cross appeal are arguments that are not properly raised. Cambridge University Press v. Patton, 769 F.3d 1232, 1255 (11th Cir. 2014). A party who has not appealed may not bring an argument in opposition to a judgment or attack the judgment in any respect, or hitch a ride on his adversary's notice of appeal to enlarge his rights under the judgment or diminish those of the opposing party. Id. at 1255.

In the present case, Appellee's Brief raises the issues of (1) Appellee failing to attend the trial (Appellee's Brief P. 8-10); (2) monies that Appellee alleges are owed to him by Appellants (Appellee's Brief P. 18); (3) monies that Appellee alleges are owed to him by Appellants for travel expenses (Appellee's Brief P. 22-23); (4) a dispute claimed to exist over Appellee's visa application (Appellee's Brief P. 24-28); and (5) Appellee's concerns over the wording of the Final Judgment entered by the District Court (Appellee's Brief P. 51-53). Pursuant to the ruling in Cambridge University, supra, this court cannot allow Appellee to "hitch a ride" on Appellants' Notice of Appeal and treat such arguments as outside the scope of the appeal.

CONCLUSION

WHEREFORE, Appellants request that this Court enter an Order reversing the Order of Motions for Summary Judgment as to Counts II, III, IV, V, and VI, and Order reversing the Order Denying Appellant's Motion to Amend and remanding this matter for further proceedings and for such further relief as the Court deems appropriate.



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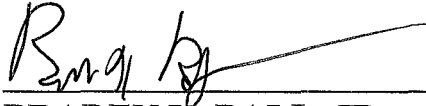
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RULE 32(G) CERTIFICATE OF TYPE-VOLUME COMPLIANCE

I HEREBY CERTIFY that this Brief is produced in Times New Roman 14-point type and contains 1,001 words, exclusive of those items set forth in Fed.R.App.P. 32(f), in accordance with the type-volume limitations of Fed.R.App.P. 32(a)(5-7).



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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that I have on this 16th day of December, 2020, a copy of the foregoing has been furnished to the Defendant/Appellee, Marc M. Moszkowski, Le Verdos, 83300 Chateaudouble, France (m.moszkowski@deepgulf.net) via the Court's E-filing system.



BRADEN K. BALL, JR.